

HOUSE No. 2621

The Commonwealth of Massachusetts

PRESENTED BY:

Jessica Ann Giannino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to "Critical Incident Leave".

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>1/15/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/11/2025</i>
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>7/18/2025</i>

HOUSE No. 2621

By Representative Giannino of Revere, a petition (accompanied by bill, House, No. 2621) of Jessica Ann Giannino and Patrick Joseph Kearney for legislation to regulate administrative leaves involving events during which officers discharge firearms. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to "Critical Incident Leave".

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 41 of the General Laws, as appearing in the 2020, Official Edition, is hereby
2 amended by inserting after section 133 the following new section:-

3 SECTION 134. Any “Law Enforcement Agency” as defined in MGL 6E Sec 1, placing
4 any “Law Enforcement Officer”, as defined in MGL Ch 6E Sec 1, on administrative leave
5 pending an investigation involving any event during which an officer: discharges a firearm, as
6 defined in section 121 of chapter 140, actually or proximately causing injury or death to another;
7 discharges any stun gun as defined in said section 121 of said chapter 140, actually or
8 proximately causing injury or death to another; discharges tear gas or other chemical weapon,
9 actually or proximately causing injury or death of another; discharges rubber pellets from a
10 propulsion device, actually or proximately causing injury or death of another; deploys a dog,
11 actually or proximately causing injury or death of another; uses deadly force, actually or
12 proximately causing injury or death of another; or engages in a physical altercation with a person

13 who sustains serious bodily injury or requests or receives medical care as a result; shall record
14 such time as “Critical Incident Leave” in all department records of the event. Any public release
15 referencing this leave shall use the term “Critical Incident Leave”.